Proforma Invoice

Print Date: 20-May-26

TRANE BVBA
(Dubai Branch)
P.O.Box: 31000
Dubai, UAE

ترين بي في بي ايه
(فرع دبي)
ص.ب: 31000
دبي, الامارات العربية المتحدة

Email: EquipmentDistributorAfricaIDA@tranet
Telephone: +971 4 428 5200
Facsimile: +971 4 4285394

Order Date: 20-May-26
Revision: 0
Your Order Number: PI
Order Number: 82022252
Additional Order Ref: HVAC PARTS_CUSTOM FORM

Bill to: 1150900

Contact:

MWITO SOLUTIONS
71 KAPENDA
LUBUMBASHI, 0000
CONGO, THE DEMOCRATIC REPUBLIC OF THE

Ship to: 1150900

Contact:

MWITO SOLUTIONS
71 KAPENDA
LUBUMBASHI, 0000
CONGO, THE DEMOCRATIC REPUBLIC OF THE

Payment Terms: CIA
Freight Terms: Prepay & Add
Ship Method: BEST WAY-TL-Standard

Line	Item	Description	Qty	UOM	Request Date	Schedule Arrival Date	WHS	Ship Method	INCO Terms	HTS	COO	Net Price (USD)	Extended Net Price (USD)
1.1	SEN02128	SENSOR; 2.2 INCH LIQUID LEVEL, BOTTOM MOUNT, SHIPS WITH GKT04098	9	EA	20-May-26	26-May-26	BEG	BEST WAY-TL-Standard	FCA_PLANT Tongeren	8415900015	FR	1,339.00	12,051.00
2.1	SEN02039	SENSOR; TEMPERATURE SENSOR, FAST RESPONSE	8	EA	20-May-26	21-May-26	BEG	BEST WAY-TL-Standard	FCA_PLANT Tongeren	9025190090	US	214.00	1,712.00

Payment Terms: CIA

Remittance Instructions:
Standard Chartered Bank
BIC : SCBLAEADXXX
USD IBAN: AE070440000101700481801
Account: 01-7004818-01
Please include our invoice numbers on your instructions to your bank

	Subtotal (USD):	13,763.00
	TOTAL (USD):	13,763.00

Disclaimer: This is Not a Tax Invoice

Trane - Terms and Conditions of Sale

1 APPLICABILITY AND VARIATION
1.1 These Trane general terms and conditions (the 'Terms') apply to all proposals, quotations, contracts or agreements issued or entered into by Trane.
1.2 No variation to these Terms shall be applicable unless explicitly agreed in writ-ing by an authorized Trane representative.
1.3 These Terms shall take precedence over any other terms and conditions, in particular those which are referred to in any of the customer's documents.

2 FORMATION OF CONTRACT
2.1 Unless explicitly stated otherwise, any proposal submitted by Trane is valid for a period of 30 days from its date.
2.2 The contract will be formed only upon issuance of a written order acknowl-edgement by Trane, or, if sooner, upon the execution of the order.

3 PRICING
3.1 Unless agreed otherwise, prices are quoted EXW (Incoterms 2020), inclusive of standard domestic packaging for truck transport and shall be exclusive of VAT or any other applicable tax or duty which the customer will pay in addition to the prices.
3.2 Prices are valid for shipment of products or performance of services during the on-going calendar year. Trane may apply a price indexation mechanism for ship-ment or performance in subsequent years.

4 DELIVERY
4.1 Unless agreed otherwise, products are delivered EXW (Incoterms 2020) with standard domestic packaging for truck transport.
4.2 Delivery dates are estimates only and Trane shall not be liable for any dam-ages attributable to any delay or failure to deliver. In the event delivery is delayed beyond the acknowledged delivery date for any reason and at any time, Trane shall advise the customer thereof as soon as practicable and provide a new esti-mated delivery date. The customer will have to notify the carrier and Trane imme-diately of any damage detected or detectable upon delivery.
4.3 The customer must inform Trane of any issues that might prevent the sched-uled on-site delivery. If Trane is unable to deliver the products to the customer for any reason attributable to the customer, the products will be deemed to have been delivered and Trane may invoice and store the products until actual delivery and the customer will be liable for all related costs and expenses.

5 ACCESS TO SITE AND ACCEPTANCE OF PRODUCTS AND SERVICES
5.1 Trane and its subcontractors will be given free, safe and continuous access to the site and use of services on site as reasonably required by Trane to perform the services or deliver or commission the products, failing which customer will pay all of Trane's costs arising of or resulting from such customer's refusal.
5.2 The customer is deemed to have accepted the products or services or any part thereof, unless Trane is notified in writing to the contrary within 7 calendar days of Trane's provision of the products or services.

6 PAYMENT
6.1 Unless agreed otherwise, the price shall be paid in USD and is due within 30 days from the date of Trane's invoice as follows: 30% of the price on acceptance of the customer's order and 70% of the price on shipment of products or perfor-mance of services. Trane reserves the right to require the provision of bank guar-antee or letter of credit as Trane may deem necessary.
6.2 No payment shall be deemed to have been received until Trane has received cleared funds.
6.3 The customer shall make all payments due without any deduction whether by way of set-off, counterclaim, discount, abatement or otherwise.
6.4 Trane reserves the right to suspend warranty or further deliveries of products or performance of services under any contract with the customer in the event of late or non-payment.
6.5 Where amounts are not duly paid and without prejudice to any other right or remedy, Trane will automatically and without any formal notification be entitled to levy interest at a rate of 1 % per month. When the customer after a formal notifi-cation fails to settle the outstanding amount, Trane will automatically be entitled, to a fixed indemnity of 10% of the price in addition to the principal amount and inter-ests thereon.

7 DEFERRAL AND CANCELLATION
7.1 Except with Trane's prior written agreement, the customer may not defer de-livery or cancel, in whole or part, any contract. Such agreement shall be subject to the customer indemnifying Trane in full against any loss (including loss of profit), costs, charges and other expenses incurred as a result of the deferral or cancella-tion.
7.2 Trane reserves the right to cancel the contract in the event of non- or late payment.
7.3 Return of new and unused spare parts is only possible within one month after delivery, subject to Trane's prior written approval. When approved, credit notes will be issued at no more than 50% of the value of the so returned spare part compensating for Trane's re-stocking charges.

8 TRANSFER OF TITLE AND RISK
8.1 Risk in the products and all liability to third parties in respect thereof shall pass to the customer upon delivery in accordance with Article 4.1 or storage in accord-ance with Article 4.3 (if earlier).
8.2 To the extent allowed under applicable law, ownership of the products shall not pass to the customer until Trane has received in full all sums due to it in re-spect of the products.
8.3 While the ownership of the products remains with Trane, it may, subject to the customer not having fulfilled its payment obligations, take repossession of the products.
8.4 Until ownership has passed pursuant to Article 8.2, the customer shall not, un-less otherwise agreed in writing, transfer ownership to a third party nor charge or encumber the products in any way and maintain the products in satisfactory condi-tion insured on Trane's behalf for their full price.

9 WARRANTY
9.1 Subject to the conditions set forth herein, Trane warrants that its products are free from defects of material and workmanship and have the capacities and rat-ings set forth in Trane catalogues, subject to normal laboratory test tolerances.
9.2 The following warranty periods apply:
a) Products: subject to mandatory provisions of applicable law, 12 (twelve) months from the date of first commissioning ('start-up') with a maximum of 18 (eighteen) months from the date of shipment;
b) Repaired or replacement products (or parts): the remainder of the warranty pe-riod pursuant to Article 9.2(a).
9.3 The warranty will not apply to:
a) Consumable parts including, without limitation, filters, oil and v-belts.
b) Normal wear and tear, corrosion, erosion or loss of refrigerant;
c) Products which are not installed, stored or used correctly in accordance with Trane's instructions or which are damaged by a third party during the installation or commissioning;
d) Products which are not subject of a Trane maintenance agreement or not maintained by qualified engineers in accordance with Trane's instructions;
e) In the event of improper water treatment; or
f) Products which are modified without Trane's written approval or damaged by any act beyond Trane's control.
9.4 If a product does not conform to this warranty, Trane shall at its sole option repair or replace such product (or the defective part thereof), or if the products (or defective part thereof) cannot be repaired or replaced for any reason, refund the Price of such products, provided that, if Trane so requests, the customer returns the product to Trane. Any product returned to Trane which cannot be repaired will belong to Trane. Replacement products (or parts) will be delivered EXW (Inco-terms 2020). Freight and return costs of defective, repaired or replacement prod-ucts (or parts) will be borne by customer. When products (or parts) are repaired on site, labour costs, as well as travel and residence expenses incurred by Trane are borne by the customer as per Trane's then applicable labour rates.
9. 5 In relation to services, Trane warrants that the services will be provided using reasonable skill and care for a period of 90 days from completion of such services and Trane's obligation under this warranty is limited to correcting any improperly performed services.
9.6 Trane Parts shall be warranted for 12 months from the date of shipment to be free from defects of material and workmanship and Trane shall, at its discretion replace or repair Parts shown to be defective provided the Parts were installed, operated and maintained in accordance with Trane recommendations.
9.7 The customer will inform Trane in writing of any defect or deficiency in the products or services within 2 weeks of the time such defect or deficiency becomes apparent, in absence of which the customer forfeits its rights under the warranty.
9.8 In the event of a warranty claim, Trane has the right to inspect the products or services.
9.9 Beyond its own product portfolio Trane provides no additional warranty and accepts no liability for third party products selected by the customer, in particular but not limited to controls, and which are required by the customer to be integrat-ed in Trane products.
9.10 Once complied with this Article, Trane shall have no further liability for a breach of warranty in respect of such products or services.

10 FORCE MAJEURE
10.1Trane reserves the right to defer the delivery date or to cancel the contract in whole or in part, if it is prevented from or delayed in the carrying on of its business due to circumstances beyond its reasonable control, including (without limitation) acts of God, accidents, compliance with any law, regulation or other government order (whether or not valid), war or national emergency, riots, fire, industrial ac-tion, shortages of labour, restraints or delays affecting carriers or inability or delay in obtaining supplies of adequate or suitable materials. If the force majeure event continues for a continuous period in excess of 6 months, either party shall be enti-tled to terminate the contract.

11 LIMITATION OF LIABILITY
11. 1 Unless otherwise provided for by mandatory provision of applicable law, Trane's total liability for direct damages, if and when established, shall be limited to the price of such products and/or services. Trane shall be under no liability to the customer for any consequential damage or indirect damage, including but not limited to loss of profit, costs of unloading, crane and personnel availability, loss of refrigeration.
11.2 Catalogs, price lists and any other sales literature are issued by Trane for in-formation purposes only and can be updated or amended from time to time. Any typographical, clerical or other error, mistake or omission in these documents or in offers, order acknowledgements, drawings, specifications, invoice or other docu-ments shall be subject to correction without any liability on the part of Trane.
11.3 Trane shall not be responsible for any consequence arising of or resulting from the use of incomplete or incorrect information communicated by the custom-er to Trane.
11.4 The customer retains responsibility for the HVAC system design, its draw-ings and in particular the verification of the accuracy and suitability of the products and services within customer's system.

12 INTELLECTUAL AND INDUSTRIAL PROPERTY RIGHTS
12.1 The customer acknowledges that it will acquire no intellectual or industrial property rights in any patent, trademark, trade name, drawings or any other relat-ed right owned, used or developed by Trane prior to or during the execution of the contract.
12.2 The customer agrees not to do or permit to be done anything which might in any way adversely affect the validity or value of Trane's intellectual or industrial property rights or the goodwill therein.
12.3 Notwithstanding the foregoing, when Trane develops specific software or source code for a customer, this customer is, subject to payment of the agreed royalties, granted a non-transferable, non-exclusive right of usage for the lifetime of the concerned HVAC system on the agreed project site.

13 PERSONAL DATA
In the context of the performance of this Agreement either Party ("Data Recipi-ent") may process personal data relating to other Party's ("Data Provider") (i) vendors, (ii) customers, (iii) employees, or (iv) agents, directors or other individu-als that are not employees ("Personal Data"). Such provision of Personal Data shall constitute an exchange from one controller to another controller. The Parties shall each as a controller for their own purposes process any Personal Data in compliance with applicable laws regarding the processing of Personal Data. Fur-thermore, the Data Recipient agrees that it as well as its employees, agents and contractors of any legal status, including but not limited to individuals, partnerships and corporations ("Agents") will not use Personal Data for any purpose other than the fulfillment of this Agreement and will not retain the Personal Data for longer than necessary. The Data Recipient and its Agents to whom Personal Data are provided shall maintain appropriate technical, organizational and security measures for the protection of Personal Data.
The Data Recipient agrees to immediately report to the Data Provider any known or suspected (i) unauthorized access to the Personal Data, (ii) loss or theft of the Personal Data, and (iii) use or disclosure of Personal Data that violates the terms of this Agreement. The Data Recipient will mitigate, to the extent practicable, any harmful effects of any such events known to it or its Agents, and cooperate with the Data Provider in providing any notices regarding such events which the Data Provider deems appropriate.
Personal Data of the customer may be processed by Trane Technologies for legitimate business reasons such as fulfilling purchase orders, processing invoices and re-ceiving payments, honoring warranties for customer service agreements and part replacements, for general customer administration, website management, provid-ing marketing information on products and services and events that may interest customer (with consent of individuals for direct marketing where legally required). Personal Data of the customer may be transferred to Trane Technologies entities worldwide or to third parties worldwide providing services to the Trane Technologies Group (such as data hosting services) for these purposes. Trane Technologies will keep the Personal Data as long as necessary for the purposes of the processing except if we have to process it further under a legal obligation or in case of a dis-pute or legal procedure. In the USA, Trane Technologies is Privacy Shield certified. When working with other parties outside the EU, we ensure adequate personal data protection, for instance through the implementation of standard contractual clauses - as recognized by the European Commission- or by working with third parties who are certified under the EU – U.S. Privacy Shield and the U.S. – Swiss Privacy Shield Framework. By entering into an agreement with Trane Technologies you confirm that you are entitled to provide Trane Technologies with this Personal Data in view of the use and transfer of Personal Data for these purposes, including that you have obtained the necessary consents of data subjects where required.
In situations where any Party would, as a processor, process Personal Data on behalf of the other (as controller), they will enter into a data processing agreement in conformity with applicable law, including where applicable the GDPR.
To obtain complete information on Trane Technologies privacy policy, please refer to https://tranetechnologies.com/privacy-policy.html

14 ASSIGNMENT
14.1 The customer shall not be entitled to assign the contract or any part of it without the prior written consent of Trane.
14.2 Trane may assign the contract or any part of it to any person, firm or company.

15 LAW AND JURISDICTION
15.1 All Contracts are governed by Irish law. The United Nations Convention on Contracts for the International Sale of Goods (CISG) does not apply.
15.2 Parties will refer any dispute to the exclusive jurisdiction of the Courts of Dublin.

16 GENERAL
16.1 If any provision of the Terms is found by any court to be wholly or partly ille-gal, invalid or unenforceable it shall to the extent of such illegality, invalidity or un-enforceability be deemed severable and the remaining provisions of the Terms shall continue in full force and effect.
16..2 Failure or delay by Trane in enforcing or partially enforcing any provision of the Terms will not be construed as a waiver of any of its rights under the Terms.